Syllabus

HAVANA DOCKS CORP. *v.* ROYAL CARIBBEAN CRUISES, LTD., ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

No. 24–983. Argued February 23, 2026—Decided May 21, 2026

In 1928, the United States-based Havana Docks Corporation acquired from the Cuban Government a property interest in the development and operation of docks at the Port of Havana. That property interest, a usufructuary concession, was time-limited and set to expire in 2004. The Cuban Government agreed that, if it expropriated the docks before 2004, it would compensate Havana Docks for the value of the works it had constructed. After Fidel Castro seized power in 1959, the new Cuban Government decreed that it would forcibly take American-owned properties and enterprises in Cuba and specifically identified Havana Docks. As relevant here, the Cuban Government seized, without compensation, the docks that Havana Docks had constructed and its property interest in those docks. Havana Docks filed a claim with the Foreign Claims Settlement Commission, which certified about $9 million in losses, plus six percent annual interest. Despite these certified losses, Havana Docks lacked any means to obtain compensation. That began to change in 1996, when Congress enacted the Cuban Liberty and Democratic Solidarity Act, 22 U. S. C. §6021 *et seq.*, which creates a private right of action for United States nationals who own claims to "property which was confiscated by the Cuban Government on or after January 1, 1959," §6082(a)(1)(A). Title III of the Act imposes liability on those who knowingly and intentionally traffic in such confiscated property. §§6023(13)(A)(i), (ii). The Act authorizes the President to "suspend" the Title III right of action, §§6085(c)(1), (2), and Presidents Clinton, Bush, and Obama continuously suspended the right of action from its effective date onward. President Trump allowed the suspension of the Title III right of action to expire in May 2019.

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From 2016 to 2019, four commercial cruise lines—Royal Caribbean Cruises, Norwegian Cruise Line Holdings, Carnival Corporation, and MSC Cruises—transported nearly a million paid passengers to Cuba, using the docks that Havana Docks built to embark and disembark their passengers. In 2019, Havana Docks invoked Title III and sued the cruise lines in the United States District Court for the Southern District of Florida. The cruise lines argued they were not liable because Havana Docks' property interest would have expired in 2004 even absent

confiscation. The District Court rejected that argument and entered summary judgment against all four cruise lines, awarding Havana Docks more than $100 million from each. A divided panel of the Eleventh Circuit reversed. In its view, a defendant is liable for trafficking in confiscated property only if its actions would have interfered with the plaintiff's property interest had there been no confiscation. On that view, because Havana Docks' concession would have expired before 2016, the cruise lines' challenged conduct from 2016 to 2019 did not constitute trafficking.

Held: The cruise lines' use of the docks is sufficient to establish that they used "property which was confiscated by the Cuban Government"; Havana Docks is not required to establish that the cruise lines trafficked in Havana Docks' property interest. Pp. 245–253.

(a) Title III generally makes any person who "traffics in property which was confiscated by the Cuban Government . . . liable to any United States national who owns the claim to such property." § 6082(a)(1)(A). This dispute turns on whether the relevant "property which was confiscated" must be Havana Docks' property interest in the docks (the concession), or whether it could instead be the docks themselves.

Under the plain text of Title III, "property which was confiscated" can refer to the physical property in which the plaintiff had an interest, and not just the interest itself. Title III makes entities liable for trafficking in "any property . . . and any . . . interest therein" that the Cuban Government confiscated, §§ 6023(12)(A), 6082(a)(1)(A), and the Act's definition of "property" makes clear that the Act imposes liability for trafficking in both physical property and property interests. The term "any property" includes physical things, as the Court recognized when it previously considered Fidel Castro's expropriations and noted that the Cuban Government "nationalize[d] by forced expropriation *property* . . . in which American nationals had an *interest*." *Banco Nacional de Cuba* v. *Sabbatino*, 376 U. S. 398, 401 (emphasis added).

The relevant "property which was confiscated" is therefore not limited to the plaintiff's interest in that property; it can refer to the physical property in which the plaintiff had an interest when the Cuban Government "seiz[ed] . . . control of" it after January 1, 1959. § 6023(4)(A). Confiscated property is, as it were, tainted—off limits—such that anyone who uses the property can be liable to those who had any interest in the tainted property. Pp. 245–248.

(b) On that understanding of "property," Havana Docks has shown that the cruise lines used confiscated property in which Havana Docks had a property interest and to which it owns a claim. The docks are "property which was confiscated" because Havana Docks established

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that the Cuban Government confiscated those docks without compensation when Castro's forces physically took possession of the docks and expelled Havana Docks' agents in 1960. The cruise lines "use[d]" or "engage[d] in commercial activity using" the docks, §§6023(13)(A)(i), (ii), when they transported nearly a million paying passengers to Cuba "without the authorization of" Havana Docks, §6023(13)(A). Finally, Havana Docks is a "United States national who owns the claim" to the confiscated docks, §6082(a)(1)(A), as its Commission-certified claim is "conclusive proof" that it has satisfied this element, §6083(a)(1). Pp. 248–250.

(c) The Court of Appeals' analysis and the cruise lines' arguments conflict with Title III's text. Pp. 250–253.

(1) The Court of Appeals interpreted the Act to require a counterfactual analysis, assuming that there had been no confiscation of the owner's property interest: "[T]he way to give effect to the statutory language ('traffics in property which was confiscated')," the court said, "is to view the property interest at issue in a Title III action as if there had been no expropriation and then determine whether the alleged conduct constituted trafficking in that interest." 119 F. 4th, at 1287. That counterfactual approach rested on the premise that "property" could refer only to present property interests, but this approach is difficult to understand and apply, and would foreclose liability in cases where the text demands it. If the approach requires courts to assume that the original rightsholder retained his legal rights, it would read out of the Act cases of trafficking that should be in the heartland of Title III, such as when companies sell and purchase confiscated property interests. Title III is instead simply an antitrafficking right of action that recognizes that the effect of the Cuban Government's expropriation was the destruction of the plaintiff's interest in the property. It then provides a right to compensation based on the plaintiff's *former* property interest from those who later traffic in the property and thereby help to support the Communist Cuban Government. Pp. 250–252.

(2) The cruise lines' argument that the Cuban Government did not confiscate the docks, but only the concession, fails. The Act defines "confiscat[ion]" to include the seizure of "control of property," §6023(4)(A), and when armed agents physically occupied the dock facilities, they seized control of the docks. Before the seizure, Havana Docks was in possession of the works; after the seizure, the Cuban Government stopped Havana Docks from operating, using, enjoying, possessing, or otherwise controlling the docks. The Cuban Government thereby extinguished Havana Docks' concession and physically occupied the docks, and those actions constitute confiscation of the docks under Title III. Pp. 252–253.

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(d) Because the Court of Appeals wrongfully concluded that the cruise lines did not use confiscated property to which Havana Docks owns the claim, it did not reach the cruise lines' remaining arguments against liability; those arguments are not before the Court, and the Court does not address them. P. 253.

119 F. 4th 1276, vacated and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, SOTOMAYOR, GORSUCH, KAVANAUGH, BARRETT, and JACKSON, JJ., joined. SOTOMAYOR, J., filed a concurring opinion, in which KAVANAUGH, J., joined, *post*, p. 253. KAGAN, J., filed a dissenting opinion, *post*, p. 257.

Richard Klingler argued the cause for petitioner. With him on the briefs was *Vincent H. Li.*

Aimee W. Brown argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Sauer, Assistant Attorney General Shumate, Deputy Solicitor General Gannon, Sharon Swingle, Lewis S. Yelin*, and *Reed D. Rubinstein.*

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Paul D. Clement argued the cause for respondents. With him on the brief were *Matthew D. Rowen*, *Niccolo A. Beltramo*, *E. Joshua Rosenkranz*, *Robert M. Loeb*, *J. Douglas Baldridge*, *Andrew T. Hernacki*, *Kannon K. Shanmugam*, *William T. Marks*, *Abigail Frisch Vice*, *Derek L. Shaffer*, *Christopher G. Michel*, and *Nicholas J. Caluda.**

JUSTICE THOMAS delivered the opinion of the Court.

In 1996, Congress enacted the Cuban Liberty and Democratic Solidarity Act. The Act seeks to deter trafficking

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*Briefs of *amici curiae* urging reversal were filed for Rep. Mario Díaz-Balart et al. by *Bryan S. Gowdy* and *Dimitrios A. Peteves*; and for Daniel W. Fisk by *Marcos Daniel Jiménez.*

Briefs of *amici curiae* urging affirmance were filed for the Cruise Lines International Association by *Shay Dvoretzky, Parker Rider-Longmaid, Steven Marcus*; and for the U. S. Travel Association et al. by *Bradley J. Bondi* and *Ronald K. Anguas, Jr.*